**IN THE UNITED STATES DISTRICT COURT**
**FOR THE NORTHERN DISTRICT OF GEORGIA**
**ATLANTA DIVISION**

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| WE GOT U LLC,<br><br>Plaintiff,<br><br>v.<br><br>GARRY LEONARD, DIANA LEONARD, LEONARD CONSULTING, LLC, and FSELL MARKETING, LLC,<br><br>Defendants. | Civil Action No.: 1:26-cv-03474-VMC<br><br>JURY TRIAL DEMANDED |

**JOINT MOTION FOR ENTRY OF CONSENT PROTECTIVE ORDER**

Pursuant to Federal Rule of Civil Procedure 26(c), this Court's Standing Order, and for good cause shown, Plaintiff/Counter-Defendant We Got U LLC ("WGU" or "Plaintiff") and Defendants/Counter-Claimants Garry Leonard, Diana Leonard, Leonard Consulting, LLC, and FSELL Marketing, LLC (collectively "Defendants") (WGU and Defendants collectively "the Parties" or individually as "Party") jointly move for the entry of a Consent Protective Order. The Parties assert that a protective order is necessary to protect the confidential, proprietary, and trade-secret information of the Parties, as well as the private information of the Parties' clients, customers, and employees. In the interest of furthering discovery, and for

the mutual protection of the Parties, the Parties respectfully request that the Court enter the Consent Protective Order, attached as **Exhibit A**.

Respectfully submitted this 8th day of September, 2026.

**AGREED:**

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*Attorneys for Defendants*

**CERTIFICATE OF SERVICE**

This certifies that I have this day electronically filed the foregoing **JOINT MOTION FOR ENTRY OF CONSENT PROTECTIVE ORDER** in the United States District Court for the Northern District of Georgia, with notice of same being electronically served by the CM/ECF system, to all attorneys of record.

*/s/ Nathan D. chapman*
Nathan D. Chapman

# EXHIBIT A

**IN THE UNITED STATES DISTRICT COURT**
**FOR THE NORTHERN DISTRICT OF GEORGIA**
**ATLANTA DIVISION**

| | | |
|---|---|---|
| WE GOT U LLC,<br><br>Plaintiff,<br><br>v.<br><br>GARRY LEONARD, DIANA LEONARD, LEONARD CONSULTING, LLC, and FSELL MARKETING, LLC,<br><br>Defendants. | ) | Civil Action No.: 26-cv-03474-VMC<br><br>JURY TRIAL DEMANDED |

# CONSENT PROTECTIVE ORDER

Pursuant to Federal Rule of Civil Procedure 26(c), the Court's Standing Order, and for good cause shown, Plaintiff/Counter-Defendant We Got U LLC ("WGU" or "Plaintiff") and Defendants/Counter-Claimants Garry Leonard, Diana Leonard, Leonard Consulting, LLC, and FSELL Marketing, LLC (collectively "Defendants") (WGU and Defendants collectively "the Parties" or individually as "Party"), hereby stipulate to the entry of the following Consent Protective Order.

## 1. PRELIMINARY STATEMENT

### A. Purposes and Limitations.

Discovery in this action involves production of confidential, proprietary, or private personal or business information for which special protection from public

disclosure and from use for any purpose other than prosecuting this litigation may be warranted. Accordingly, the Parties hereby stipulate to and petition the Court to enter the following Consent Protective Order. The Parties acknowledge that this Order does not confer blanket protections on all disclosures or responses to discovery and that the protection it affords from public disclosure and use extends only to the limited information or items that are entitled to confidential treatment under the applicable legal principles. The parties further acknowledge that they have reviewed the Court's Standing Order and understand that the "Court eschews the excess use of consent protective confidentiality orders that allow counsel to designate documents, tangible things, and information as 'Confidential' and/or 'Confidential—For Attorney's Eyes Only. . . . [and] the Court will not approve consent protective orders that conflict with the Court's view on the sealing of materials." The Parties further acknowledge, as set forth in Section 11.3, below, that this Consent Protective Order does not entitle them to file confidential information under seal; the Court's Standing Order sets forth the procedures that must be followed and the standards that will be applied when a Party seeks permission from the court to file material under seal.

**B. Good Cause Statement.**

The Parties anticipate that discovery may involve information that a Producing Party contends is confidential, proprietary, commercially sensitive, or

otherwise entitled to protection from unrestricted disclosure. Defendants dispute, and do not concede, that any particular information at issue constitutes a trade secret or that disclosure of any particular information would cause competitive, economic, or other cognizable harm. The Parties nevertheless seek a procedure for designating and challenging materials that a Producing Party in good faith believes may warrant protection under Federal Rule of Civil Procedure 26(c), subject to the terms of this Order.

A Producing Party may contend that certain categories of discovery material warrant confidential treatment, including alleged non-public compilations of client or prospect data; personally identifying information; alleged proprietary marketing strategies, creative assets, pitch or proposal materials; platform-access information; financial, pricing, compensation, or client information; and other internal commercial information. Nothing in this description constitutes an agreement that any listed category, document, or items qualifies for protection, is non-public, is a trade secret, or would cause harm if disclosed.

The Parties intend that information will not be designated for tactical reasons and that any designation will be made only on a good-faith basis and subject to challenge under this Order.

**C. Nonconcession.**

Entry of this Order, the designation, production, receipt, or treatment of any material as CONFIDENTIAL, or HIGHLY CONFIDENTIAL – ATTORNEYS' EYES ONLY, and any Party's compliance with this Order shall not constitute an admission, concession, or evidence in this case that any information is a trade secret, confidential, proprietary, non-public, commercially sensitive, relevant, admissible, subject to protection, or likely to cause competitive or other harm if disclosed. All Parties expressly reserve every claim, defense, objection, and argument concerning the nature, status, ownership, secrecy, protectability, use, relevance, admissibility, and alleged harm associated with any information or material.

## 2. DEFINITIONS

2.1 Action: The above-entitled proceeding Case No. 1:26-cv-03474-VMC.

2.2 Challenging Party: A Party or Non-Party that challenges a designation of "Confidential" or "Highly Confidential—Attorneys' Eyes Only" designation of information or items under this Order.

2.3 "CONFIDENTIAL" Information or Items: Information (regardless of how it is generated, stored or maintained) or tangible things that qualify for protection under Federal Rule of Civil Procedure 26(c), the Court's Standing Order, and as specified above in the Good Cause Statement.

2.4 HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY Information that a Producing Party, in good faith, contends is both non-public and extremely confidential and/or highly sensitive in nature, disclosure of which to another Party or Non-Party the Producing Party reasonably and in good faith believes is likely to cause significant and immediate economic harm or competitive disadvantage to the Producing Party.

2.5 Counsel: Outside Counsel of Record and In-House Counsel (as well as their support staff).

2.6 Designating Party: A Party or Non-Party that designates information or items that it produces in disclosures or in responses to discovery as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY."

2.7 Disclosure or Discovery Material: All items or information, regardless of the medium or manner in which it is generated, stored, or maintained (including, among other things, testimony, transcripts, and tangible things), that are produced or generated in disclosures or responses to discovery in this matter.

2.8 Expert: A person with specialized knowledge or experience in a matter pertinent to the litigation who has been retained by a Party or its counsel to serve as an expert witness or as a consultant in this Action.

2.9 In-House Counsel: Attorneys who are employees of a Party to this Action. In-House Counsel does not include Outside Counsel of Record or any other outside counsel.

2.10 Non-Party: Any natural person, partnership, corporation, association, or other individual or legal entity not named as a Party to this action.

2.11 Outside Counsel of Record: Attorneys who are not employees of a Party to this Action but are retained to represent or advise a Party to this Action and have appeared in this Action on behalf of that Party or are affiliated with a law firm which has appeared on behalf of that Party, including their support staff.

2.12 Party: Any Party to this Action, including all of its officers, directors, employees, consultants, retained experts, and Outside Counsel of Record (and their support staffs).

2.13 Producing Party: A Party or Non-Party that produces Disclosure or Discovery Material in this Action.

2.14 Professional Vendors: Persons or entities that provide litigation support services (*e.g.*, photocopying, videotaping, translating, preparing exhibits or demonstrations, and organizing, storing, or retrieving data in any form or medium) and their employees and subcontractors.

2.15 Protected Material: Any Disclosure or Discovery Material that is designated as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY."

2.16 Receiving Party: A Party that receives Disclosure or Discovery Material from a Producing Party.

## 3. SCOPE

The protections conferred by this Stipulation and Order cover not only Protected Material (as defined above), but also (1) any information copied or extracted from Protected Material; (2) all copies, excerpts, summaries, or compilations of Protected Material; and (3) any testimony, conversations, or presentations by Parties or their Counsel that might reveal Protected Material.

Any use of Protected Material at trial shall be governed by the orders of the trial judge. This Order does not govern the use of Protected Material at trial.

## 4. DURATION

Even after final disposition of this litigation, the confidentiality obligations imposed by this Order shall remain in effect until a Designating Party agrees otherwise in writing or a court order otherwise directs. Final disposition shall be deemed to be the later of (1) voluntary dismissal of all claims and defenses in this Action, with or without prejudice; or (2) entry of final judgment herein after the completion and exhaustion of all appeals and/or issuance of a mandate in any appeals

filed; rehearings; remands; trials; or reviews of this Action, including the time limits for filing any motions or applications for extension of time pursuant to applicable law.

## 5. DESIGNATING PROTECTED MATERIAL

5.1 Exercise of Restraint and Care in Designating Material for Protection. Each Party or Non-Party that designates information or items for protection under this Order must take care to limit any such designation to specific material that qualifies under the appropriate standards. The Designating Party must designate for protection only those parts of material, documents, items, or oral or written communications that qualify so that other portions of the material, documents, items, or communications for which protection is not warranted are not swept unjustifiably within the ambit of this Order.

If it comes to a Designating Party's attention that information or items that it designated for protection do not qualify for protection, that Designating Party must promptly notify all other Parties that it is withdrawing the inapplicable designation.

A Party may designate as CONFIDENTIAL or HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY information of a Non-Party that is in the Party's possession, custody, or control where the Party reasonably and in good faith believes that the information is non-public and entitled to protection under Federal Rule of Civil Procedure 26(c), including information subject to a

confidentiality obligation or information the disclosure of which could cause commercial, competitive, privacy, contractual, or other cognizable harm to the Non-Party. To the extent practicable, the producing Party shall provide notice of the designation to the affected Non-Party.

5.2 Manner and Timing of Designations. Except as otherwise provided in this Order (*see, e.g.*, second paragraph of section 5.2(a) below), or as otherwise stipulated or ordered, Disclosure or Discovery Material that qualifies for protection under this Order must be clearly so designated before the material is disclosed or produced.

Designation in conformity with this Order requires:

(a) for information in documentary form (*e.g.*, paper or electronic documents, but excluding transcripts of depositions or other pretrial or trial proceedings), that the Producing Party affix the legend "CONFIDENTIAL" (hereinafter "CONFIDENTIAL legend") or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" (hereinafter "AEO legend") to each page that contains protected material.

A Party or Non-Party that makes original documents available for inspection need not designate them for protection until after the inspecting Party has indicated which documents it would like copied and produced. During the inspection and before the designation, all of the material made available for inspection shall be

deemed "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY." After the inspecting Party has identified the documents it wants copied and produced, the Producing Party must determine which documents, or portions thereof, qualify for protection under this Order. Then, before producing the specified documents, the Producing Party must affix the "CONFIDENTIAL legend" or "AEO legend" to each page that contains Protected Material.

(b) for testimony given in depositions or other testimony that the Designating Party either (i) designate the deposition testimony as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" by so stating on the record on the day the testimony is given, or (ii) by sending written notice to counsel for all other parties designating, by page and line, the portion of any transcript or transcripts to be treated as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" within thirty (30) days of receipt of the final transcript by counsel.

(c) for information produced in some form other than documentary and for any other tangible items, that the Producing Party affix in a prominent place on the exterior of the container or containers in which the information is stored the "CONFIDENTIAL" legend or "AEO legend". If only a portion or portions of the information warrants protection, the Producing Party, to the extent practicable, shall identify the protected portion(s) by written notice to the Receiving Party.

5.3 Inadvertent Failures to Designate. The inadvertent production of any "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" Litigation material during discovery in this action without the "Confidential" legend or "AEO" legend, or the inadvertent production of any privileged or work-product-protected Litigation material, shall be without prejudice to any subsequent claim that such material is "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY," is privileged in any respect, or is protected from discovery as work-product. No party shall be held to have waived any rights by any such inadvertent production. Upon written notice that inadvertently produced material is claimed to be privileged or protected by the work-product doctrine, the Receiving Party shall promptly cease review, use, and disclosure of the identified material; sequester it and all copies; and return or destroy it within five (5) business days, subject to the Receiving Party's right to challenge the asserted privilege or protection without using or disclosing the substance of the challenged material except as permitted by the Court. Upon written notice of a corrected confidentiality designation, the Receiving Party shall prospectively treat the material as designated under this Order and shall make reasonable efforts to secure, retrieve, or re-designate copies of the identified material within its possession, custody, or control. This section is intended to supplement, and not to

supplant, the procedure set forth in Federal Rule of Civil Procedure 26(b)(5)(B) concerning inadvertent disclosure.

5.4 Non-Party Designations and Corrected Designations. A Non-Party producing information in this Action may designate material as CONFIDENTIAL or HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY at the time of production or by written notice identifying the material with reasonable specificity within thirty (30) days after production. A failure to designate within that period shall not constitute waiver where the Non-Party or an affected Party later provides a corrected designation in good faith and the Receiving Parties can reasonably implement the designation without material prejudice. Pending expiration of the thirty (30) day designation period, information produced by a Non-Party that the Non-Party identifies at or before production as potentially confidential, proprietary, commercially sensitive, private, or competitively sensitive shall be treated as CONFIDENTIAL.

## 6. CHALLENGING CONFIDENTIALITY DESIGNATIONS

6.1 Timing of Challenges. A Party or Non-Party may challenge a designation of confidentiality by written notice to the Designating Party. Challenges shall be made in good faith and not for tactical delay. Nothing in this section precludes a Party from challenging a designation in connection with a motion,

hearing, trial, or other filing, including where the need to use the material first arises at that time.

6.2 Meet and Confer. Before raising a challenge with the Court, the Challenging Party must confer in good faith with the Designating Party in an effort to resolve the dispute. As required by the Court's Standing Order, this duty is not satisfied by written communication alone (*e.g.*, a letter or email) unless good-faith attempts to confer by telephone, video conference, or in person have been unsuccessful.

6.3 Procedure for Unresolved Challenges. If the Parties are unable to resolve the challenge after conferring in good faith, the Challenging Party must follow the discovery-dispute resolution procedure set forth in the Court's Standing Order. No motion regarding the disputed designation may be filed without the Court's prior permission. Instead, the Challenging Party must email the Court's Courtroom Deputy Clerk, copying all parties, a statement not exceeding 500 words that identifies the specific designation(s) at issue, explains the basis for the challenge, and attaches as an exhibit the relevant discovery material and the disputed designation. The Designating Party may submit a responsive statement, not exceeding 500 words, by the deadline set by Chambers. The Court will then resolve the dispute by conference call or by order.

6.4 Burden and Status Quo Pending Resolution. The burden of persuasion on any challenge lies with the Designating Party. Frivolous challenges, or those made for an improper purpose (*e.g.*, to harass or to impose unnecessary expense or burden on other parties), may expose the Challenging Party to sanctions. Unless and until the Designating Party withdraws the designation or the Court rules on the challenge, all Parties must continue to treat the material as designated.

## 7. ACCESS TO AND USE OF PROTECTED MATERIAL

7.1 Basic Principles. A Receiving Party may use Protected Material that is disclosed or produced by another Party or by a Non-Party in connection with this Action only for prosecuting, defending, or attempting to settle this Action. No Protected Material may be used or disclosed for any other purpose. Such Protected Material may be disclosed only to the categories of persons and under the conditions described in this Order. When the Action has been terminated, a Receiving Party must comply with the provisions of Section 12 below (FINAL DISPOSITION).

Protected Material must be stored and maintained by a Receiving Party at a location and in a secure manner that ensures that access is limited to the persons authorized under this Order.

7.2 Disclosure of "CONFIDENTIAL" Information or Items. Unless otherwise ordered by the Court or permitted in writing by the Designating Party, a Receiving Party may disclose any information or item designated

"CONFIDENTIAL" only to the persons identified in this Section 7.2. "CONFIDENTIAL" and "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" information are not subject to the same level of access. AEO information is subject to the narrower list of authorized recipients set forth in Section 7.3 below, and no person may receive AEO information solely by virtue of being authorized to receive CONFIDENTIAL information under this Section 7.2.

(a) the Receiving Party's Outside Counsel of Record in this Action, as well as employees of said Outside Counsel of Record to whom it is reasonably necessary to disclose the information for this Action;

(b) the officers, directors, and employees (including In-House Counsel) of the Receiving Party to whom disclosure is reasonably necessary for this Action;

(c) experts (as defined in this Order) of the Receiving Party to whom disclosure is reasonably necessary for this Action and who have signed the "Acknowledgment and Agreement to Be Bound" (Exhibit 1);

(d) the Court and its personnel, as reasonably necessary or directed by the Court;

(e) court reporters and their staff, as reasonably necessary;

(f) professional jury or trial consultants, mock jurors, and Professional Vendors to whom disclosure is reasonably necessary for this Action and who have signed the "Acknowledgment and Agreement to Be Bound" (Exhibit 1);

(g) the author or recipient of a document containing the information or a custodian or other person who otherwise possessed or knew the information;

(h) during their depositions, witnesses, and attorneys for witnesses, in the Action to whom disclosure is reasonably necessary, provided: (1) the party seeking to disclose the material requests that the witness sign the "Acknowledgment and Agreement to Be Bound" (Exhibit 1) before being shown the material; and (2) the witness will not be permitted to retain any copy of the material after the deposition unless the witness has signed the "Acknowledgment and Agreement to Be Bound" (Exhibit 1), unless otherwise agreed by the Designating Party or ordered by the Court. Any portion of a deposition transcript or deposition exhibit that reveals Protected Material must be clearly marked "CONFIDENTIAL" or "AEO," as applicable, and—regardless of whether the transcript or exhibit is produced in paper or electronic form—must be maintained and transmitted by the Parties in a manner that limits access to the persons authorized to receive that category of Protected Material under this Order; and

(i) any mediator or settlement officer, and their supporting personnel, mutually agreed upon by any of the parties engaged in settlement discussions.

7.3 Disclosure of "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" Information or Items. Unless otherwise ordered by the Court or permitted in writing by the Designating Party, a Receiving Party may disclose any information

or item designated "AEO" only to the persons identified below. Notwithstanding Section 7.2(b), AEO information may NOT be disclosed to any officer, director, or employee of the Receiving Party, including In-House Counsel, unless the Designating Party otherwise agrees in writing or the Court orders otherwise:

(a) the Receiving Party's Outside Counsel of Record in this Action, as well as employees of said Outside Counsel of Record to whom it is reasonably necessary to disclose the information for this Action;

(b) experts (as defined in this Order) of the Receiving Party to whom disclosure is reasonably necessary for this Action and who have signed the "Acknowledgment and Agreement to Be Bound" (Exhibit 1);

(c) the Court and its personnel, as reasonably necessary or directed by the Court;

(d) court reporters and their staff, as reasonably necessary;

(e) professional jury or trial consultants, mock jurors, and Professional Vendors to whom disclosure is reasonably necessary for this Action and who have signed the "Acknowledgment and Agreement to Be Bound" (Exhibit 1);

(f) the author or recipient of a document containing the information, or a custodian or other person who otherwise possessed or knew the information;

(g) during a deposition, a witness who is independently authorized to receive AEO information under this Section 7.3 (for example, as the author,

recipient, or custodian of the material, or as a retained expert who has signed Exhibit 1), and that witness's attorney, subject to the conditions of Section 7.2(h). AEO information may not be shown to any other deposition witness absent the Designating Party's written consent or a Court order; and

(h) any mediator or settlement officer, and their supporting personnel, mutually agreed upon by any of the parties engaged in settlement discussions and who have signed the "Acknowledgment and Agreement to Be Bound" (Exhibit 1).

## 8. PROTECTED MATERIAL SUBPOENAED OR ORDERED PRODUCED IN OTHER LITIGATION

If a Party is served with a subpoena or a court order issued in other litigation that compels disclosure of any information or items designated in this Action as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY," that Party must:

(a) promptly notify in writing the Designating Party. Such notification shall include a copy of the subpoena or court order;

(b) promptly notify in writing the party who caused the subpoena or order to issue in the other litigation that some or all of the material covered by the subpoena or order is subject to this Consent Protective Order. Such notification shall include a copy of this Consent Protective Order; and

(c) cooperate with respect to all reasonable procedures sought to be pursued by the Designating Party whose Protected Material may be affected.

If the Designating Party or an affected Non-Party timely seeks a protective order or other appropriate relief, the Party served with the subpoena or court order shall not produce any information designated in this action as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" before a determination by the court from which the subpoena or order issued, unless the Party has obtained the Designating Party's permission. The Designating Party shall bear the burden and expense of seeking protection in that court of its confidential material and nothing in these provisions should be construed as authorizing or encouraging a Receiving Party in this Action to disobey a lawful directive from another court.

**9. A NON-PARTY'S PROTECTED MATERIAL SOUGHT TO BE PRODUCED IN THIS LITIGATION**

(a) The terms of this Order are applicable to information produced by a Non-Party in this Action and designated as "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY." Such information produced by Non-Parties in connection with this litigation is protected by the remedies and relief provided by this Order. Nothing in these provisions should be construed as prohibiting a Non-Party from seeking additional protections.

(b) In the event that a Party is required, by a valid discovery request, subpoena, or order, to produce information of a Non-Party in its possession, custody, or control that the Party reasonably believes is confidential, proprietary,

commercially sensitive, private, competitively sensitive, or otherwise entitled to protection, then the Party shall:

(1) promptly notify in writing the Requesting Party and the Non-Party that responsive information may implicate the Non-Party's confidential, proprietary, private, or commercially sensitive information;

(2) promptly provide the Non-Party with the Consent Protective Order, the relevant request or subpoena, a reasonably specific description of the potentially responsive information, and the applicable production deadline;

(3) make the information available for inspection by the Non-Party, if requested; and

(4) reasonably cooperate with the Non-Party in seeking a protective order, narrowing the request, redacting sensitive information, designating the material, or otherwise preserving the Non-Party's rights.

(c) If the Non-Party timely objects, seeks a protective order, requests reasonable additional time to obtain counsel, or otherwise notifies the Parties that it asserts confidentiality or other protection, the Party in possession of the information shall not produce the disputed information unless the Non-Party consents, the Parties agree, or the Court orders production. If the Non-Party does not respond within twenty-one (21) days after receiving notice and the accompanying information, the Party may produce the information only after providing not less than seven (7)

business days' additional written notice to the Non-Party of the intended production date, unless an applicable Court order or discovery deadline requires earlier production.

The failure of a Non-Party to seek relief within any period stated in this Order shall not itself constitute a waiver of any confidentiality, privacy, privilege, trade-secret, contractual, or other legal protection, and shall not preclude the Non-Party or an affected Party from seeking appropriate relief from the Court.

(d) Protected Material obtained from or concerning a Non-Party may be used solely for this Action and not for any commercial, competitive, customer-solicitation, employment, reputational, or business-development purpose.

## 10. UNAUTHORIZED DISCLOSURE OF PROTECTED MATERIAL

If a Receiving Party learns that, by inadvertence or otherwise, it has disclosed Protected Material to any person or in any circumstance not authorized under this Consent Protective Order, the Receiving Party must immediately (a) notify in writing the Designating Party of the unauthorized disclosures, (b) use its best efforts to retrieve all unauthorized copies of the Protected Material, (c) inform the person or persons to whom unauthorized disclosures were made of all the terms of this Order, and (d) request such person or persons to execute the "Acknowledgment and Agreement to Be Bound" that is attached hereto as Exhibit 1.

## 11. MISCELLANEOUS

11.1 Right to Further Relief. Nothing in this Order abridges the right of any person to seek its modification by the Court in the future.

11.2 Right to Assert Other Objections. By stipulating to the entry of this Consent Protective Order no Party waives any right it otherwise would have to object to disclosing or producing any information or item on any ground not addressed in this Consent Protective Order. Similarly, no Party waives any right to object on any ground to use in evidence of any of the material covered by this Consent Protective Order. Nothing in this Order waives or limits any Party's right to contest whether material is relevant, responsive, discoverable, authentic, admissible, confidential, proprietary, a trade secret, or otherwise entitled to protection, or whether disclosure of any material would cause harm.

11.3 Filing Protected Material. Any documents (including briefs), tangible things, or information designated as Confidential that are submitted to the Court in support of or in opposition to a motion or introduced at a hearing or during trial may retain their protected confidential status only by compliance with the Court's Procedures for Electronic Filing Under Seal in Civil Cases. A Party that seeks to file under seal any Protected Material must comply with the Court's Standing Order, and the procedures provided in Section II(J) of Appendix H ("Appendix H") to the Court's Local Civil Rules, available on the Court's website. Protected Material may

only be filed under seal pursuant to a court order authorizing the sealing of the specific Protected Material at issue. If a Party seeks to file material designated as CONFIDENTIAL or HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY by another Party or an affected Non-Party, the filing Party shall comply with the Court's applicable procedures for provisionally sealed filings and shall promptly give written notice to the Designating Party and any affected Non-Party. The filing Party may file a motion for leave to file under seal or redact the protected material as required by the Court's procedures. The Designating Party or affected Non-Party shall bear the burden of providing the particularized factual basis supporting sealing or redaction of its information, including why targeted redaction would be inadequate. The Parties shall reasonably cooperate in identifying narrowly tailored redactions and preparing any materials required by the Court. Unless the Court directs otherwise, the Designating Party or affected Non-Party shall provide its supporting declaration or other sealing information within ten (10) business days after service of notice of the provisional filing. Failure to do so shall not itself waive confidentiality or any other protection, but the filing Party may seek appropriate direction from the Court concerning further treatment of the provisionally sealed material.

## 12. FINAL DISPOSITION

After the final disposition of this Action, as defined in paragraph 4, within 60 days of a written request by the Designating Party, each Receiving Party must return all Protected Material to the Producing Party or destroy such material. As used in this subdivision, "all Protected Material" includes all copies, abstracts, compilations, summaries, and any other format reproducing or capturing any of the Protected Material. Whether the Protected Material is returned or destroyed, the Receiving Party must submit a written certification to the Producing Party (and, if not the same person or entity, to the Designating Party) by the 60 day deadline that (1) identifies (by category, where appropriate) all the Protected Material that was returned or destroyed and (2) affirms that the Receiving Party has not retained any copies, abstracts, compilations, summaries or any other format reproducing or capturing any of the Protected Material. Notwithstanding this provision, Counsel are entitled to retain an archival copy of all pleadings, motion papers, trial, deposition, and hearing transcripts, legal memoranda, correspondence, deposition and trial exhibits, expert reports, attorney work product, and consultant and expert work product, even if such materials contain Protected Material, to the extent necessary to fulfill their ethical obligations under the law. Any such archival copies that contain or constitute

Protected Material remain subject to this Consent Protective Order as set forth in Section 4 (DURATION).

This section does not require deletion of Protected Material residing on routine backup media, disaster-recovery systems, server caches, automatically created archival systems, or other electronic systems not reasonably accessible in the ordinary course of business, provided that such material is not accessed, restored, or used for any purpose other than compliance with legal, regulatory, or ordinary-course information-governance obligations. Any material retained under this section remains subject to the confidentiality obligations of this Order.

13. Any intentional violation of this Order may be punished by any and all appropriate measures the Court deems necessary.

The Parties, by and through their respective representatives, hereby agree and stipulate to each of the terms and conditions as set forth in the foregoing Consent Protective Order.

ENTERED this _____ day of _____, 2026.

_____
The Honorable Victoria Marie Calvert
United States District Court Judge

**AGREED:**

*/s/ Nathan D. Chapman*
Nathan D. Chapman
Georgia Bar No. 244954
Chadwick L. Williams
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**EXHIBIT "1"**
**IN THE UNITED STATES DISTRICT COURT**
**FOR THE NORTHERN DISTRICT OF GEORGIA**
**ATLANTA DIVISION**

| | | |
|---|---|---|
| WE GOT U LLC,<br><br>Plaintiff,<br><br>v.<br><br>GARRY LEONARD, DIANA LEONARD, LEONARD CONSULTING, LLC, and FSELL MARKETING, LLC,<br><br>Defendants. | ) | Civil Action No.: 26-cv-03474-VMC<br><br>JURY TRIAL DEMANDED |

**Acknowledgment and Agreement to Be Bound**

I, _____, hereby state as follows:

1. I have carefully read and understand the Consent Protective Order, and I agree to be bound by the terms thereof and to comply with the terms thereof. I hereby submit irrevocably to the jurisdiction of this Court for the purpose of enforcing the Consent Protective Order in the event that I am alleged to have violated the terms thereof.

2. I will hold in confidence and not disclose to anyone not qualified under the Consent Protective Order any "CONFIDENTIAL" or "HIGHLY CONFIDENTIAL—ATTORNEYS' EYES ONLY" information as defined in the

Consent Protective Order, or any words, summaries, abstracts, or indices of such information disclosed to me.

3. Following final disposition of the Action and upon request, I will return or destroy Protected Material in my possession, custody, or control as directed by counsel for the Party for whom I was retained, consistent with Section 12 of the Consent Protective Order.

4. I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Dated: _____, 202__

_____
Name